

25VECV04829 25VECV04829

County: los-angeles
Division: Civil Law and Motion
Department: 107
Hearing date: 2026-09-17
Source URL:
https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept_date=LAV%2C107%2C09%2F17%2F2026
Source SHA-256: 20a22e6b8b06af1aefee59842810cc0eba7bd04cb17d80dcefee3686b88484b1

Case Number: 25VECV04829 Hearing Date: September 17, 2026 Dept: 107

SUPERIOR COURT OF THE STATE OF
CALIFORNIA

COUNTY OF LOS ANGELES

NORTHWEST DISTRICT

Salwha
Hariri,

Plaintiff,

v.

Costco
Wholesale Corporation,

↺↺

Defendant.

Case Number Department

25VECV04829 107

COURT'S [TENTATIVE]
ORDER RE:

Motion
to Continue Trial

[THE
FOLLOWING IS A TENTATIVE RULING IN THE ABOVE CASE]:

Granted

I.
BACKGROUND

On March
22, 2024, Plaintiff Salwha Hariri was allegedly struck by an “electric
shopping” cart while on the premises of Defendant Costco Whole Corporation
(Costco), located at 6100 Sepulveda Blvd., Van Nuys.

On August
25, 2025, Plaintiff filed a complaint for Negligence and Premises Liability.
Costco answered the complaint on November 13, 2025.

II.
LEGAL
STANDARD

Pursuant
to California Rules of Court rule 3.1332(a):

“Continuances
before or during trial in civil cases are disfavored. The date set for trial shall be firm. . . .
Except for good cause, the motion [for continuance] shall be made on written
notice to all other parties. The notice
shall be given and motion made promptly on the necessity for the continuance
being ascertained. A continuance before
or during trial shall not be granted except on an affirmative showing of good
cause under the standards recommended in section 9 of the Standards of Judicial
Administration. . . . (7) A significant, unanticipated change in the status of
the case as a result of which the case is not ready for trial.”

“c)
Grounds for continuance

“Although

continuances of trials are disfavored, each request for a continuance must be considered on its own merits. The court may grant a continuance only on an affirmative showing of good cause requiring the continuance. Circumstances that may indicate good cause include: ...

Other

factors set forth in California Rules of Court rule 3.1332(d) that are relevant in granting a continuance include: “(1) The proximity of the trial date; (2) Whether there was any previous continuance, extension of time, or delay of trial due to any party; (3) The length of the continuance requested; (4) The availability of alternative means to address the problem that gave rise to the motion or application for a continuance; (5) The prejudice that parties or witnesses will suffer as a result of the continuance; (6) If the case is entitled to a preferential trial setting, the reasons for that status and whether the need for a continuance outweighs the need to avoid delay; (7) The court's calendar and the impact of granting a continuance on other pending trials; (8) Whether trial counsel is engaged in another trial; (9) Whether all parties have stipulated to a continuance; (10) Whether the interests of justice are best served by a continuance, by the trial of the matter, or by imposing conditions on the continuance; and (11) Any other fact or circumstance relevant to the fair determination of the motion or application.”

III.

DISCUSSION

Costco

moves for a continuance in order to allow the hearing on the motion for summary judgment. On January 7, 2026, the court set the case for trial. Costco filed its summary judgment motion on August 18, 2026, and reserved the first available date of February 17, 2026—nine days after the current trial date. [Declaration of Jeffrey Tsao.]

Costco

remains entitled to bring a motion for summary judgment. (*Polibrid Coatings, Inc. v. Superior Court* (2003) 112 Cal.App.4th 920, 923-924; *First State Ins. Co. v. Superior Court* (2000) 79 Cal.App.4th 324, 330; *Mediterranean Const. Co. v. State Farm Fire & Cas. Co.* (1998) 66 Cal.App.4th 257, 262; *Sentry Ins. Co. v. Superior Court* (1989) 207 Cal.App.3d 526,

529.) The first available reserved date on a motion for summary judgment falls beyond the current trial date. Rather than advance the hearing date, the court grants the unopposed motion for a continuance of the February 8, 2027, trial date for the purpose for the hearing of the motion for summary judgment.

The court
also extends the discovery deadlines for the limited purpose of opposing the motion, if applicable. Nothing in this order otherwise exempts any other law and motion filed after the initial trial date cutoff, unless exclusively related to any discovery necessary for opposing the motion for summary judgment.

IV.

CONCLUSION

For the
foregoing reasons, the court grants the motion to continue the trial date. The court will determine the new trial date in consultation with counsel at the hearing.

Dated: September

17, 2026 _____ Hon.

Eric Harmon

Judge of the Superior Court